Comments to the Department of Health and Human Services (HHS) and Centers for Medicare and Medicaid Services (CMS)

RFI on Health Technology Ecosystem

June 2025

The Better Identity Coalition appreciates the opportunity to provide comments to the Department of Health and Human Services (HHS) and Centers for Medicare and Medicaid Services (CMS) on its RFI on the Health Technology Ecosystem

As background, the Better Identity Coalition is an organization focused on developing and advancing consensus-driven, cross-sector policy solutions that promote the development and adoption of better solutions for identity verification and authentication. Our members – 22 companies in total – are recognized leaders from different sectors of the economy, encompassing firms in financial services, fintech, payments, health care, information technology, and security.

The coalition was launched in February 2018 as an initiative of the Center for Cybersecurity Policy & Law, a non-profit dedicated to promoting education and collaboration with policymakers on policies related to cybersecurity. More on the Coalition is available at https://www.betteridentity.org/.

In July of 2018, we published *Better Identity in America: A Blueprint for Policymakers*[1] – a document that outlined a comprehensive action plan for the U.S. government to take to improve the state of digital identity in the U.S. Privacy is a significant focus: the Blueprint detailed new policies and initiatives that can help both government and industry deliver next-generation identity solutions that are not only more secure, but also better for privacy and customer experiences.

With this in mind, we were excited to see this recent RFI on the Health Technology Ecosystem focus significantly on the importance of robust identity verification and authentication solutions in enabling secure access to – and exchange of – health records.

We offer two points in this regard:

1. **Focus on IAL2 and AAL2 is a good start – but may not reflect the full range of where the market is going.**

   Digital identity credentials that have been certified as meeting NIST Identity Assurance Level 2 (IAL2) and Authenticator Assurance Level 2 (AAL2) represent some of the most robust identity tools available on the commercial market. Moreover, the number of certified IAL2 and AAL2 solutions has only increased in recent years, given health ecosystem stakeholders more choices than ever.

   That said, the digital identity market is at an important inflection point where new alternatives to private Credential Service Providers (CSPs) are emerging in the form of mobile Driver's Licenses (mDLs) and other government-issued digital verifiable credentials (VCs) that provide a digital counterpart to the paper and plastic IDs that Federal, state and local governments issue today.

[1] See https://www.betteridentity.org/s/Better_Identity_Coalition-Blueprint-July-2018.pdf

We were a bit surprised that this RFI did not make reference to VCs such as mDLs, given that more than a dozen states have started to offer them to their residents. In addition, critical work is underway at the National Cybersecurity Center of Excellence (NCCoE) at the National Institute of Standards and Technology (NIST) on a new project to accelerate the adoption of mDL standards and best practices, and build a reference architecture demonstrating real world business use cases, integrating mDLs with commercially available technology and into business processes including those tied to account opening.[2]

NIST has made clear that health care is one of the three core use cases they are focusing on in this project, and given that this work is already underway, we believe HHS and CMS should be thinking about the role that mDLs and other VCs can play in the future when it comes to the identity solutions that patients, payers, providers, pharmacies, and other health ecosystem stakeholders should look to rely upon in the years ahead.

2. **It may be premature to formally mandate use of the OpenID Connect standard in the VC/mDL ecosystem.**

Use of OpenID Connect is a best practice in federated identity environments, where a patient or other user is leveraging a CSP.

Open ID Connect also has an important role to play in the VC/mDL ecosystem, where new versions of the standard such as the OpenID for Verifiable Credentials family of specifications are playing an important role in the way that consumers can use their mDL to prove their identity online.

We note, however, that the identity community is still working through whether use of Open ID Connect will be the only way to use a mDL or VC; there is another emerging standard from the W3C called the Digital Credentials API that some stakeholders are also using as an alternative way to present a VC or mDL. Likewise there are other protocols such as the Client to Authenticator Protocol (CTAP) v2.2 developed by FIDO Alliance that are starting to play an important role in communicating between a digital credential stored in a user's smartphone wallet and an application running on another device (such as a hospital website running in a browser on a nearby laptop).

All this is to say that while we expect Open ID Connect to be one of a handful of foundational standards for digital identity in the years to come, there is currently a lively discussion in identity-focused standards bodies – many including government agencies – to sort out which standards can or should be used to support different digital identity use cases.

We greatly appreciate HHS' and CMS' willingness to consider our comments and suggestions, and welcome the opportunity to have further discussions. Should you have any questions on our

[2] See https://www.nccoe.nist.gov/projects/digital-identities-mdl

feedback, please contact the Better Identity Coalition's coordinator, Jeremy Grant, at jeremy.grant@venable.com.